Contract

For certification of the management system according to :

ISO 9001:2015

Under

NABCB ACCREDITATION

Between

TUV INDIA PVT. LTD.
801, Raheja Plaza 1,
L.B.S. Marg,
Ghatkopar (West),
Mumbai : 400 086

NIHVA TECHNOLOGIES PVT. LTD.

Head Office: Dream House, 187, G - Block, First floor, Thermax Chowk, MIDC, Chinchwad, Pune - 411019
Works – Gat No.199, Jyotiba Nagar, Talawade, Pune – 411062, Maharashtra, India

Pin Code: 411019

hereinafter called Client

Contract

The contract for certification of Management Systems applies along with Offer No PUN/QMS Rev./23-24/2137/1 which defines the scope of the certification. The contract covers the tasks to be performed by TUV India Pvt. Ltd. and by the company to be certified (hereinafter called Client) as well as the conditions for the use of the TUV logo.

This contract shall be governed by laws of India and subject to exclusive jurisdiction of courts of Mumbai. Each Party shall be entitled to seek such injunctive relief as may be deemed proper by a court of competent jurisdiction in addition to other remedies available to it.

1. Tasks of TUV India Pvt. Ltd. and the Client
1.1 Tasks of TUV India Pvt. Ltd.

a) TUV India Pvt. Ltd. undertakes to treat as confidential all information made available to it concerning the Client's company and only to use it for the agreed purpose. Documents to which it is granted access shall not be passed on to third parties. This shall not include any detailed report to an arbitration body in the case of a dispute. The Client may release TUV India Pvt. Ltd. from the secrecy obligation for certain reasons. Information about a particular client or individual shall not be discussed / disclosed to a third party – except to Accreditation Body - without the written consent of the client or individual concerned. Where the law requires the client confidential information to be disclosed to a third party; the client or individual concerned shall, unless regulated by law,be informed in advance of the information provided by TUV.

b) TUV India Pvt. Ltd. shall conduct the certification and surveillance in accordance with the TUV India Pvt. Ltd. regulations. The basis for the certification is provided by the requirements laid down in the standard mentioned in the offer. The certificate shall only be issued if the requirements of the standard have been met.

c) TUV India Pvt. Ltd. shall notify the holder of the certificate of any changes in the certification procedure which have any direct consequences for him.

d) TUV India Pvt. Ltd. shall maintain a list of the companies certified indicating the scope of the certification in each case shall provide upon request.

e) The client can appeal to the Head certification in case the client is not satisfied with the decision taken by audit team, the certification decision by TUV India Pvt. Ltd. or any specific aspect. Head Certification shall ensure independent review and shall revert to client.

f) TUV India Pvt. Ltd. shall record in writing any complaints made by the Client concerning the certification procedure and, in the case of complaints about specialist matters it shall inform the Technical Advisory committee. If no agreement can be reached between the Client and the Certification Body, the Technical Advisory committee shall decide whether to engage the arbitration body. The Client shall be entitled to approach the Accreditation Body in the case of complaints about the Certification Body.

g) The validity of the certificate shall commence from the date the certification decision is taken and shall be for three years. This assumes that, on the basis of the last date of initial audit, semi-annual or annual surveillance audits are performed at the certified locations, and the result is positive. In special, justified cases it may be necessary to conduct a special audit at a shorter interval. The need for this shall be at the discretion of the Certification Body

1.2 Tasks of the Client

i) The Client shall make available (hand over or make facilities for examination) to TUV India Pvt. Ltd.at least 4 weeks before the audit (pre-audit, certification audit, surveillance audit) all valid documents relating to the Management System (manual, possibly procedures) and on request records of, for example, internal audits performed (in the case of group certification ISO 9000).

ii) By the time of the certification audit, Client shall conduct minimum one complete internal audit (all elements of the Management System must have been audited) and an evaluation of the Management System.

iii) The Client shall provide the team of auditors during the audit facilities to examine the records covered by the scope of the certification and shall grant them access to the organizational units concerned.

iv) Client shall name a contact person in the management responsible for handling the audit. This person shall normally be the representative appointed for the respective Management System.

v) Once the certificate has been issued, Client shall be obliged to notify TUV India Pvt. Ltd. of any major changes to its system, e.g. change in status of the organisation related to legal/ commercial/ ownership/ management, contact address and sites, scope of operations under the certified management system and any other major changes to the management system and processes.

vi) Client shall be obliged to record all complaints and their settlement with respect to the Management System and to document them for the auditor in the audit. The client shall provide access to all information and records of all complaints to during the validity of the certificate.

vii) Client shall notify of any consultancy services used in the domain of the Management System

viii) In context of maintaining the accreditation Client shall hereby declare its willingness to allow a possible witness audit/ validation audit/unannounced audit arising out of complaint or any violation of this contract (i.e.The client shall allow auditor/observer/technical expert from TUV India Pvt. Ltd. and/or from the accreditation body to participate in such audit when required by the certification/accreditation body.)to be performed in its company.

ix) In case of any change of the accreditation requirements, Certification Body shall intimate to the clients.Clients shall be obliged to fulfill the changes with immediate effect

1.2 a Specific Conditions for Group Certifications:

a) Client shall be obliged to fulfill all the conditions for a group certification if the Group Certification procedure for management systems is/are being applied and notify TUV India Pvt. Ltd. without delay of failure to fulfill them.

b) The stipulation, creation and maintenance of a management system to apply uniformly for all branches/production shops. This also relates to the major Management System procedures.

c) The manufacturing / providing of similar nature of products/services in the production shops/branches.

d) The monitoring of the whole management system under centralized direction by the management representative. The later shall be empowered to issue instructions to all branches/production sites.

e) Certain areas shall work centrally for all areas, e.g. product development, process development, purchasing, human resources etc.

f) The internal audits have been performed prior to the certification audit in all production shops/branches.

2. Conditions for use of the TUV logo and the TUV India Pvt. Ltd. certificate

2.1 Scope of the right of use

2.1.1 TUV India Pvt. Ltd. is the holder of the trade logo "TUV" (hereinafter called "TUV logo") registered with the Registrar of Trade Logos, Mumbai under application 10039752 dated 8.4.2001. On issue of the certificate TUV India Pvt. Ltd. shall grant the Client, the permission in writing to use the TUV logo.

2.1.2 Permission to use the TUV logo shall apply exclusively for the certified facility of the Client's company. Use of the logo for any other facility of the Client is not allowed

2.1.3 The TUV logo may only be used as per the instructions and sample issued along with the certificate. The logo must be clearly legible and visible. Client shall not be entitled to make any changes to the certificate. The certificate may not be used in a misleading way in advertising.

2.1.4 The TUV logo may only be used by Client and in direct conjunction with the Client's company's name or company logo. It may not be affixed to client's products or used in relation to Client's products and/or processes. Use of the logo/certificate shall be restricted to the Client and shall not be transferred to third parties of successors by the Client without the express permission of the Certification Body. If such transfer is desired a corresponding application shall be submitted. Where relevant a fresh audit shall be conducted.

2.1.5 Should action be taken against according to the principles of product liability because of contractually wrongful use of the TUV logo/ TUV India Pvt. Ltd. certificate by the Client, the Client shall be obliged to indemnify TUV India Pvt. Ltd. for any claims by third parties. The same shall apply in cases where action is taken against TUV India Pvt. Ltd.by third parties on account of advertising claims by the Client.

2.1.6 Client shall ensure that the TUV logo/ TUV India Pvt. Ltd. certificate is only used in competition in such a way that any claim made for the Client's facility is in accordance with the certification. Client shall also ensure that in a competitive context the impression is not given that the certification by TUV India Pvt. Ltd. represents an official inspection.

2.1.7 The Client acquires the non-transferable and non-exclusive right to use the TUV logo in accordance with the conditions laid down above

2.1.8 The TUV logo shall not be used on the reports for laboratory test, calibration or inspection, any certificates (test/ exam results) as well as the visiting cards. The TUV logo shall also not to be used in product Warranty, Guarantee documents. The accreditation body logo shall not be displayed on vehicles, buildings and flags.

2.1.9 The client shall stop the usage of TUV Logo and TUV India Pvt. Ltd. certificate, in any form including display of certificate & discontinue use of TUV certification logo in case of withdrawal/ expiry of the certificate. Usage of All advertising material than contains reference to its certification in any way shall also be discontinued

3.1 Termination of the right of use of the certificate, Suspension/ Withdrawal of the certificate
3.1.1 Client's entitlement to use the TUV logo and the certificate shall end with immediate effect without the need for notice of termination if

a) Surveillance audit not taken by the client or cannot be conducted for the reason caused by the client.

b) Recertification audit not taken by the client before expiry of certificate validity.

c) client misuses logo and/ or the certificate provided by the certification body, violates the contractual requirements, uses Accreditation body logo or any logo other than provided by the certification body.

d) client does not inform immediately to the certification body, the changes to the certified organisation, location, scope etc. as mentioned in clause 1.2

e) major complaint/s from the customer/s of the certified organisation.

f) major and repetitive non compliances observed during the surveillance audits, creating doubt about the effectiveness of the management system certified.

g) Non-payment of dues of certification body by the client.

h) bankruptcy proceedings are instituted against the Client's assets or an application of bankruptcy proceedings against it is rejected owing to lack of assets,

i) the certification or maintenance of the certificate is prohibited under administrative law or by court order.

j) not meeting the time deadline for submission of corrective actions against the findings of the audit

k) client found involved in any act which may damage the image of certification body.

3.1.2 TUV India Pvt. Ltd. shall

a) Have the ownership and control of the certificate during the validity period and after the validity of the certificate. The issue, suspension, withdrawal shall be controlled as per the applicable rules by TUV India Pvt. Ltd.

b) If reasons itemized under 3.1.1 arise, suspend the certificate and declare it invalid.
In such case client is informed in advance about the violation and probable suspension of the certificate and appropriate action is requested in the defined time frame. Further the certificate is suspended, if the necessary response is not given/ action is not taken by the client.

c) withdraw the certificate if necessary action is not taken by the client in defined time frame for any of the reasons as mentioned above under 3.1.1.

d) withdraw the certificate without any notice, if evaluates the impact of the violations as mentioned under 3.1.1, as very serious.

e) take all permissible measures within the framework of accreditation rules to perform its obligation in accordance with the agreed terms and conditions

4. Duration of contract

This agreement shall come into force when signed by both parties and shall run for a period of at least three years. It shall be extended in each case for a further period of three years on the client placing an appropriate order. The contract can be terminated by either parties giving a minimum of one-month advance notice.

Place, Date

(Company stamp with legally binding signature)

Rahul Nayak
Senior General Manager
Certification, Training & Sustainability

Manish Bhuptani
Managing Director

TUV INDIA PVT. LTD.
Registered Office:
801, Raheja Plaza 1, L.B.S. Marg,
Ghatkopar (West), Mumbai – 400 086,
India

Contract

Address of Locations (Other than Main Site)